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Case Number: 22STCV11245 Hearing Date: June 29, 2026 Dept: 509

Enrique Curioso, et al., v. County of Los Angeles, et al.

PLAINTIFF'S MOTION TO QUASH

MOVING PARTY: Plaintiff Steven Irving

RESPONDING PARTY(S): Defendant County of Los Angeles

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiffs Enrique Curioso, Steven Irving, Hatuey Jalisco, Konstantin Toporkov, and Rodrigo Palma (Plaintiffs) bring this action against defendants County of Los Angeles and the Los Angeles County Department of Public Works. Plaintiffs allege they each worked for the County and its third-party vendor, American Airports Corporation. In mid-2021, the County informed American Airports Corporation that it would take over the management of its own airports, and invited Plaintiffs to apply to retain their employment positions. Plaintiffs, all of whom are aged 40 or older, allege they applied to retain their positions, but that Defendants instead hired or retained younger employees. Plaintiffs bring causes of action for: (1) age discrimination, (2) failure to hire, (3) national origin discrimination, (4) failure to take steps to prevent discrimination, and (5) wrongful termination.

Plaintiff Steve Irving (Irving) now moves to quash the deposition subpoenas for production of business records issued by the County of Los Angeles (Defendant) to his subsequent employer, Atlantic Aviation FBO, Inc., seeking Irving's personnel records. Defendant opposed.

TENTATIVE RULING:

Irving's Motion to Quash is DENIED. The third party is ordered to turn over all documents consistent with the Subpoena.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Quash

A. Legal Standard

A court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.) A motion to quash the production of documents or tangible things requires a separate statement. (Cal. Rules of Court, rule 3.13459(a)(5).) “[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (Lee v. Swansboro Country Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583.)

B. Analysis

Irving moves to quash the deposition subpoena served on his subsequent employer Atlantic Aviation FBO, Inc. (the Subpoena).

The Subpoena at issue states:

THE RECORDS REQUESTED ARE regardless of date FOR THE FOLLOWING TYPES OF RECORDS: ANY AND ALL EMPLOYMENT RECORDS, EMPLOYMENT APPLICATIONS, WAGE RECORDS, PERSONNEL RECORDS, ATTENDANCE RECORDS, W-2’S, W-4’S, CONTRACT, 1099’S, RESUMES, PAYROLL RECORDS, VACATION SCHEDULE, SICK LEAVE, LEAVE OF ABSENCE RECORDS, INSURANCE RECORDS, BENEFITS, EVALUATIONS AND ANY OTHER RECORDS, INCLUDING BUT NOT LIMITED TO ANY RECORDS/DOCUMENTS THAT MAY BE STORED DIGITALLY AND/OR ELECTRONICALLY PERTAINING TO THE EMPLOYMENT OF STEVEN IRVING, DOB: 6/12/1969.

(Spurley Decl., Exhibit 1.)

Irving’s position is that the Subpoena is overbroad as drafted, seeks records that are protected from production by Irving’s Constitutional Right to Privacy. Irving argues a heightened standard applies because the records sought include constitutionally protected material, and thus, Defendant must demonstrate a compelling interest that outweighs the privacy interest.

In opposition, Defendant contend that Irving has placed their subsequent employment history at issue by bringing this lawsuit. Defendant argues that the discovery is relevant to mitigation of damages, among other things.

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Ct. (2017) 3 Cal.5th 531, 552.) Because Irving’s constitutional privacy rights are implicated, the burden is on Defendant to demonstrate that the information sought are both (1) directly relevant to claims or defenses in this action (Britt v. Superior Court (1978) 20 Cal.3d 844, 859), and (2) not available through a less intrusive means of discovery (Allen v. Superior Court (1984) 151 Cal.App.3d 447, 453).

Here, Irving has a recognized expectation of privacy in his employment records, although to an extent, he has reduced that privacy interest by bringing this case. When balancing Irving’s privacy interests against Defendant’s interest in discovering documents that are particularly relevant to Defendant’s defense of the action, this Court finds the balance shifts in favor of disclosure. The Court agrees with Defendant that the categories are relevant and not overbroad. In addition to addressing Irving’s income and work conditions at the subsequent employer, the documents sought are relevant to his performance as an employee—questions Irving has put in issue by bringing this action. It also appears there are no feasible alternatives to

obtain the documents sought.

Moreover, admissibility at trial is not to be mistaken with discoverability. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Pro. § 2017.010; *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].) Evidence is relevant if it “ha[s] any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the action.” (Evid. Code § 210.) The discovery here sought is relevant, even if it is ultimately not admissible at trial, a question this Court expresses no opinion on now.

This conclusion is consistent with the legislature’s “very liberal and flexible standard of relevancy,” such that any “doubts as to relevance should generally be resolved in favor of permitting discovery.” (*Williams*, supra, 3 Cal.5th at p. 542.)

Accordingly, Irving’s Motion to Quash is DENIED. The third party is ordered to turn over all documents consistent with the Subpoena.

C. Sanctions

In making an order pursuant to California Code of Civil Procedure section 1987.1, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

Accordingly, the Court declines to award any expenses or attorney’s fees since neither party has formally or properly requested sanctions. (See, CCP § 2023.040 – any request for sanctions must be contained in the notice of motion or opposition).

IT IS SO ORDERED.

Dated: June 29, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.